



DECISION

Complaint No. : POS/2034/KHE/73/2021

Name and Address of the Complainant : Mr. Javed Yousuf, 17-Faran Cooperative Housing Society, Hyder Ali Road, Karachi.

Name of the Agency Complained against : Sindh Building & Control Authority (SBCA) / Cooperation Department

Name & Designation of Investigation Officer : Syed Farrukh Habib
Director, Regional Office, Karachi (East)

Subject :-

ALLEGED INACTION ON THE COMPLAINTS MADE REGARDING ILLEGAL CONSTRUCTION BEING CARRIED OUT ON PLOT NO. 20, FARAN COOPERATIVE SOCIETY.

THE COMPLAINT

The complainant, Mr. Javed Yousuf, a resident of 17-Faran Cooperative Housing Society, Karachi, filed a complaint against the Sindh Building Control Authority (SBCA) and the Cooperative Department. He alleged that illegal construction was being carried out on Plot No. 20 in Faran Cooperative Society in violation of building by-laws. Despite repeated complaints to the concerned agencies, no action had been taken. He, therefore, solicited our intervention in the matter.

PROCEEDINGS

2. After admission of complaint by condoning delay under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991, (amended up to date), as well as receiving mandatory Affidavit on Form "A" and other relevant documents, report was called from both the Registrar Cooperative Society and the Director East SBCA. Upon non submission of report by SBCA. Hearing was fixed and notices were issued to the Director (East), SBCA, and Assistant Registrar Cooperative Societies-I, Karachi. Both Agencies failed to attend, whereupon Summons were issued to ensure appearance of SBCA officials. In the hearing dated 12.04.2023, the SBCA reported that no approved building plan existed for the ongoing construction. SBCA reported that it has issued a notice to the plot occupant to submit documents. Later on, it furnished completion plan duly approved by SBCA. In order to verify the fact Investigation Officer conducted a joint site inspection with Assistant Director SBCA which contradicted the claim of complainant of encroaching on his plot and of raising construction over his boundary wall. It, however, transpired that occupant of the plot was raising construction in the mandatory open space of his plot, adjacent to plots No. 17 & 19. The Assistant Director present at site assured that action would be initiated and a compliance report of the same would be submitted accordingly.

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FINDINGS

3. I have examined the case file and perused correspondence, reports and rejoinders etc., and observed that; violations as alleged of encroachment on neighboring plot was found untrue as a result of site visit. However, the occupant of Plot No. 20 had raised some construction in the compulsory open space inside his plot area. The SBCA was directed to check the same and take necessary action as under the law.

DECISION

4. Complaint thus stands rejected.

Given under my hand and seal of the office



Sd /-
(Muhammad Sohail Rajput)
Sitara-e-Imtiaz. PAS
Ombudsman Sindh

Karachi, dated 25-11-2025

